

Tentative Rulings for July 31, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404180	MENDEZ vs GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiffs Liliana Rodriguez and Lucio Mendez
Responding party: Defendant General Motors, LLC

This is a lemon law action. On July 8, 2020, Plaintiffs Liliana Rodriguez and Lucio Mendez (“Plaintiffs”) purchased a used 2020 GMC Sierra 1500 (“Vehicle”) for \$77,256.68. (First Amended Complaint [“FAC”] ¶ 32.) The Vehicle was manufactured and warranted by Defendant General Motors, LLC (“GM”) and came equipped with GM’s 3-year/36,000-mile basic bumper-to-bumper and 5-year/60,000-mile powertrain express warranties. (*Id.* at ¶ 8.)

Shortly after purchase, Plaintiffs began to experience significant problems with the subject vehicle, including issues related to (a) the illumination of the “Check Engine” warning light; (b) recall #N192282860 to address the “Software Update for Internal Range Sensor Failure”; (c) harsh shifting symptoms with the Vehicle’s transmission. (*Id.* at ¶¶ 35–36.) Plaintiffs delivered the vehicle to GM on two separate occasions, resulting in the vehicle being out of service for nearly one hundred seven (107) days. (*Id.* at ¶ 36.) Despite having knowledge of these defects, GM failed to promptly repurchase or replace Plaintiffs’ Vehicle.

Prior to litigation, GM did not make an offer to repurchase the Vehicle. (Barry Decl. ¶ 5.) Plaintiffs retained The Barry Law Firm on a contingency basis and filed suit on July 24, 2024. (*Id.*) On August 27, 2024, Plaintiffs filed the operative First Amended Complaint (“FAC”) asserting Song-Beverly claims for breach of express and implied warranty, a claim for fraudulent concealment, and a claim for violation of the Consumer Legal Remedies Act (“CLRA”) as well as a claim for violation of Civ. Code § 1793.2(b).

GM filed a demurrer to Plaintiffs’ fraud claim and CLRA claim and a motion to strike punitive damages from Plaintiffs’ FAC. Plaintiffs timely opposed. On November 18, 2024, the Court overruled GM’s demurrer in its entirety, and denied GM’s motion to strike punitive damages from Plaintiffs’ FAC.

Defendants answered and served discovery on Plaintiffs. (Keshishian Decl. ¶ 5.) Plaintiffs served written discovery and a Person Most Knowledgeable (“PMK”) deposition notice on GM; GM objected to the PMK deposition notice. (*Id.* at ¶¶ 5–8.) After meet-and-confer efforts failed to resolve discovery disputes, Plaintiffs filed three motions to compel further responses to form interrogatories, special interrogatories, and requests for production. (*Id.* at ¶¶ 10–11.) The Court granted Plaintiffs’ motions in part on May 20, 2025. (*Id.* at ¶ 11.)

On January 8, 2026, GM served its 998 Offer of Compromise (“998 Offer”) to Plaintiffs in the amount of \$100,000.00. (*Id.* at ¶ 13.) GM agreed that Plaintiffs are the

prevailing party and to pay Plaintiffs' attorneys' fees, costs, and expenses pursuant to Civ. Code § 1794(d) by way of motion. Plaintiffs accepted GM's 998 Offer on January 23, 2026, with Plaintiffs electing fees by motion. (*Id.*)

Plaintiffs request \$36,361.50 in attorney's fees and \$2,468.29 in costs, for a total of \$38,829.79. In their motion, Plaintiffs initially sought a total lodestar of \$40,809.50. As explained in reply, Plaintiffs withdrew \$4,448.00 from the lodestar, making the total sought \$36,361.50.

The work was performed by six attorneys at The Barry Law Firm at the following hourly rates: Brian J. Kim (\$450/hour), David N. Barry (\$695/hour), Kristopher Storti (\$600/hour), Otis R. Hayes III (\$550/hour), Logan Pascal (\$500/hour), and C. Richard Lara (\$375/hour). (Barry Decl. ¶ 13.) Plaintiffs argue that GM's litigation strategy necessitated extensive discovery work, including motions to compel, and that the fees were reasonably incurred in response to GM's tenacious litigation.

GM does not object to Plaintiffs' hourly rates. GM, however, argues that Plaintiffs' fee request should be reduced to \$11,703.48 in fees and \$551.20 in costs. GM challenges the fees on multiple grounds, seeking to strike 57.2 hours (\$29,106.02) as non-compensable CLRA and fraud work, templated discovery, non-compensable clerical and business expenses, and excessive time entries. GM also challenges \$1,917.09 in costs as unnecessary or undocumented.

In reply, Plaintiffs note that **GM did not object to their hourly rates** and request that they be approved in their entirety. Plaintiffs withdrew the 6.4 hours (\$4,448.00) for anticipated work on a motion to tax costs that GM did not file. Plaintiffs argue that GM's challenges are unsupported by legal authority and consist of mere opinions about what is reasonable.

Along with their reply, Plaintiffs submitted the Supplemental Declaration of David N. Barry, Esq., attaching a copy of the discovery and deposition notices propounded in this matter and invoices supporting Plaintiffs' claimed costs. New evidence in reply papers is generally not permitted and allowed only in exceptional cases; however, the Court has discretion to accept it as long as the opposing party is given an opportunity to respond. (*Jay v. Mahaffey* (2013) Cal.App.4th 1522, 1537–38.) Here, the Barry Declaration and exhibits were submitted in response to GM's arguments that Plaintiffs' discovery work was templated and that the claimed costs lacked itemization. Given the circumstances, the Court will exercise its discretion to consider it and afford **GM an opportunity to respond at the hearing.**

Analysis

1. Legal Standard

Under Civ. Code § 1794(d), if the buyer prevails in an action under the Song Beverly Act, the buyer shall be allowed to recover "a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time

expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d).) There is no dispute that Plaintiffs are the prevailing party and are entitled to reasonable attorney fees. The only question is the amount of the award.

In determining the reasonable amount, the court first determines a lodestar figure (time reasonably spent multiplied by a reasonable hourly rate) and may then adjust. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–32.) Attorney fee awards should be fully compensatory. (*Id.* at 1133.) However, a fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.) The reasonableness of attorney fees is within the sound discretion of the trial court. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

“A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (*Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 34 [internal quotation marks & quotation omitted].) If the party seeking fees fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, “then the court must take this into account and award attorney fees in a lesser amount.” (*Id.*)

As to litigation costs, under CCP §§ 1032 and 1033.5, a prevailing party is entitled as a matter of right to recover costs. Section 1033.5(a) lists items expressly allowable; section 1033.5(b) lists items expressly non-allowable; any other items may be allowed or denied in the court’s discretion under section 1033.5(c)(4). A verified memorandum of costs is prima facie evidence that items are properly chargeable; where costs appear proper on their face, the burden is on the objecting party to show them unnecessary or unreasonable. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

2. Motion for Attorneys’ Fees

a. Hourly Rates

Plaintiffs seek hourly rates ranging from: David N. Barry (\$695/hour), Kristopher Storti (\$600/hour), Otis R. Hayes III (\$550/hour), Logan Pascal (\$500/hour), Brian J. Kim (\$450/hour), and C. Richard Lara (\$375/hour). A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*Ketchum, supra*, 24 Cal.4th at 1133.) GM does not challenge Plaintiffs’ hourly rates. Although rates above \$600 per hour are on the higher end, given the unchallenged supporting evidence and counsel’s experience, the Court finds the rate reasonable for purposes of this motion. Thus, no reduction is warranted as to hourly rates.

b. Hours Billed

Plaintiffs originally sought 80.7 hours of work but withdrew 6.4 hours (\$4,448.00)

for work on an anticipated motion to tax costs that was not filed. The revised request is for 74.3 hours totaling \$36,361.50. GM challenges 57.2 hours (\$29,106.02) and requests that the Court award no more than 23.5 hours (\$11,703.48). Each category of GM's challenges is addressed below.

CLRA and Fraud Claims (6.7 hours / \$3,178.00). GM seeks to strike 6.7 hours (\$3,178.00) billed on tasks GM contends were solely related to the CLRA and fraud causes of action, arguing these are non-fee-bearing claims. It is well settled that “[w]hen a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action,” unless the issues are common or “the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney’s time into compensable and noncompensable units.” (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 349 [internal quotation omitted].) The burden rests on the party seeking apportionment to identify discrete work “solely focused” on the non-fee claim. (*Id.* at 350.)

Applying that standard, GM’s request is granted in part and denied in part. The following entries relate exclusively to the fraud and CLRA causes of action and are readily separable from the Song-Beverly claim: drafting the CLRA letter (\$69.50), reviewing and responding to GM’s meet-and-confer regarding the CLRA claim (\$139.00), reviewing GM’s meet-and-confer response (\$69.50), reviewing GM’s demurrer and motion to strike (\$1,035.00), drafting opposition (\$1,035.00), reviewing GM’s reply (\$270.00), telephonic meet-and-confer regarding pleadings (\$90.00), and appearing at the demurrer hearing (\$350.00). GM’s demurrer and motion to strike were directed only at the fraud and CLRA claims. These entries total 6.4 hours / \$3,058.00 and are properly excluded under *Santana*.

However, GM also seeks to strike 0.3 hours (\$120.00) for reviewing the FAC. The FAC did not solely add fraud/CLRA claims, but also added a Song-Beverly claim under Civ. Code § 1793.2(b). Review of the FAC therefore encompassed the fee-bearing statutory claim and is not “solely focused” on the non-fee claims. This entry is not apportionable under *Santana*. Thus, no reduction is warranted as to this entry. The Court therefore grants in part and reduce fees by \$3,058.00.

Pre-Filing Client Communications and Case Evaluation (1.3 hours / \$585.00). GM challenges 1.3 hours (\$585.00) billed for communicating with Plaintiffs regarding “case status” and reviewing repair orders before the Complaint was even drafted. However, pre-litigation activities are compensable under Song-Beverly. (*Stokus v. Marsh* (1990) 217 Cal.App.3d 647, 655.) The fees for investigation, preliminary research, drafting of demand letters, and working on the initial complaint fit the description of standard preliminary steps toward litigation. This work was necessarily incurred in connection with the commencement of the action. Thus, no reduction is warranted.

Reviewing GM’s Discovery Requests and Drafting Responses (4.2 hours / \$1,890.00). GM challenges 4.2 hours (\$1,890.00) billed by Mr. Kim to review GM’s discovery requests and draft templated responses, arguing the time is excessive

because GM uses the same requests in each Song-Beverly case. While some efficiency is expected from familiarity with standard discovery, counsel must still review requests, assess their applicability to this specific case, and prepare appropriate responses. However, 4.2 hours to review and respond to standard form discovery in a straightforward lemon law case is excessive. The Court finds that a reasonable amount of time for this task is 3.0 hours. The Court grants in part and reduce fees by 1.2 hours (\$540.00).

Drafting Discovery Requests to GM (1.6 hours / \$720.00). GM challenges 1.6 hours (\$720.00) to draft Plaintiffs' discovery requests and deposition notice, arguing these are templates. While Plaintiffs use templates, the discovery must still be tailored to the specific vehicle defects and repair history in this case. However, given that much of the work is template based, 1.6 hours is somewhat excessive. The Court finds that a reasonable amount of time is 1.0 hour. The Court grants in part and reduce fees by 0.6 hours (\$270.00).

Reviewing GM's Discovery Responses (4.1 hours / \$1,845.00). GM challenges 4.1 hours (\$1,845.00) to read GM's written discovery responses, objections, and document production. GM argues that neither Plaintiffs' requests nor GM's responses varied significantly from other Song-Beverly cases counsel routinely litigates. Some review is necessarily compensable—*e.g.*, counsel must analyze GM's specific objections and production to assess sufficiency and prepare meet-and-confer efforts. However, 4.1 hours to read written responses and objections in a straightforward lemon law case is excessive. The Court finds that a reasonable amount of time is 3.0 hours. The Court grants in part and reduces fees by 1.1 hours (\$495.00).

Meet-and-Confer Correspondence (3.1 hours / \$1,395.00). GM challenges 3.1 hours (\$1,395.00) to draft meet-and-confer letters regarding GM's PMK deposition and discovery responses. While some template language may be used, meet-and-confer letters must address the specific deficiencies in GM's responses to this case. However, 3.1 hours for meet-and-confer correspondence is excessive. The Court finds that a reasonable amount of time is 2.0 hours. The Court grants in part and reduces fees by 1.1 hours (\$495.00).

Motions to Compel (18.4 hours / \$8,280.00). GM challenges 18.4 hours (\$8,280.00) for drafting motions to compel further responses to form interrogatories, special interrogatories, and requests for production, reviewing GM's opposition, drafting a reply brief, reviewing the Court's minute order, and drafting a notice of ruling. GM argues the motions are templates and that they were unnecessary because GM already agreed to produce supplemental discovery. While discovery motions may share common legal arguments across cases, each motion must address the specific discovery at issue and the opposing party's specific objections and responses. The Court granted Plaintiffs' motions in part, indicating they had some merit. (See Court's Order dated May 20, 2025.) However, 18.4 hours for three related discovery motions (form interrogatories, special interrogatories, and requests for production), an opposition review, and a reply is on the high side. The Court finds that a reasonable amount of time for these tasks is 12.0 hours. The Court grants in part and reduces fees by 6.4 hours (\$2,880.00).

Third-Party Dealership Deposition Subpoenas (3.2 hours / \$1,734.00). GM challenges 3.2 hours (\$1,734.00) billed to draft deposition subpoenas for the PMK, service advisors, and technicians of Moss Bros GMC, the authorized dealer that performed the warranty repairs on the Vehicle. GM argues the subpoenas were unnecessary and served no purpose other than to increase fees.

Percipient-witness discovery from the repairing dealer is directly relevant to the core Song-Beverly issues, including the nature of the nonconformities, the repairs attempted, and whether the vehicle was conformed to warranty. The fact that the depositions were not ultimately taken, because the case settled following GM's 998 Offer, does not render the work unreasonable. Plaintiffs also attached copies of the deposition notices and document demands to the Barry Declaration in reply, demonstrating that the subpoenas were tailored to the specific vehicle and repair history. (Barry Suppl. Decl. ¶ 3, Ex. 1.)

However, 3.2 hours to draft deposition subpoenas is somewhat excessive given counsel's extensive experience with Song-Beverly litigation and the routine nature of dealership discovery. The Court finds that a reasonable amount of time for this task is 2.0 hours. The Court grants in part and reduce fees by 1.2 hours (\$651.00).

Excessive Client Communications (4.7 hours / \$2,690.93). GM challenges 4.7 hours (\$2,690.93) for client communications, including updates regarding case status and reviewing email correspondence from clients. Some level of client communication is necessary and compensable. However, 4.7 hours for client updates in a relatively straightforward lemon law case that settled before trial is excessive. The Court finds that a reasonable amount of time is 3.0 hours. The Court grants in part and reduce fees by 1.7 hours (\$973.00).

Excessive File Review (0.8 hours / \$425.33). GM challenges 0.8 hours (\$425.33) for reviewing the file and drafting memos to file, arguing this is duplicative. Periodic file review is standard litigation practice and ensures counsel is informed before taking substantive steps in the case. The total of 0.8 hours over the life of this matter is minimal and reasonable. No reduction is warranted.

Travel Time (4.1 hours / \$2,050.00). GM challenges 4.1 hours (\$2,050.00) for travel time to and from Victorville for Plaintiffs' depositions. Reasonable travel time by the attorney during the course of litigation may be compensable at full rates if that is the practice in the community. Travel to attend client depositions is a necessary part of litigation. The Court finds this time reasonably incurred. Thus, no reduction is warranted.

Fee Motion (12.6 hours / \$6,962.50). GM challenges 12.6 hours (\$6,962.50) for the fee motion, arguing: (1) 1.5 hours were spent reviewing and revising personal declarations that do not change from case to case; (2) the fee motion is virtually identical to other motions counsel has filed; and (3) this activity constitutes 17 percent of all billed fees. GM requests that the Court award only 3.0 hours total (1.0 hour for the motion, 1.0 hour for reply, 1.0 hour for hearing). A prevailing party is entitled to fees for time spent preparing and litigating the fee application. Absent circumstances rendering

the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee. (*Ketchum, supra*, 24 Cal.4th at 1133.) While some template language may be used, each fee motion must address the specific work performed in the case and respond to the specific challenges raised by the opposing party. Given the comprehensiveness of GM's opposition (with numerous exhibits and specific challenges to individual billing entries), the time spent on the fee motion is not unreasonable. However, 12.6 hours is somewhat excessive for a fee motion in a case that settled before trial. The Court finds that a reasonable amount of time is 9.0 hours. The Court grants in part and reduce fees by 3.6 hours (\$1,980.00).

Summary of Fee Reductions:

Category	Hours Reduced	Amount Reduced
CLRA and Fraud Claims	6.4	\$3,058.00
Reviewing GM's Discovery Requests and Drafting Responses	1.2	\$540.00
Drafting Discovery Requests to GM	0.6	\$270.00
Reviewing GM's Discovery Responses	1.1	\$495.00
Meet-and-Confer Correspondence	1.1	\$495.00
Motions to Compel	6.4	\$2,880.00
Third-Party Dealership Deposition Subpoenas	1.2	\$651.00
Excessive Client Communications	1.7	\$973.00
Fee Motion	3.6	\$1,980.00
Total	23.3	\$11,342.00

Based on the above, the Court reduces the requested fees by \$11,342.00 and awards attorney's fees in the amount of **\$25,019.50** (\$36,361.50 – \$11,342.00).

3. Litigation Costs

Under CCP §§ 1032 and 1033.5, a prevailing party is entitled as a matter of right to recover costs. Section 1033.5(a) lists items expressly allowable; section 1033.5(b) lists items expressly non-allowable; any other items may be allowed or denied in the Court's discretion under section 1033.5(c)(4). A verified memorandum of costs is prima facie evidence that items are properly chargeable; where costs appear proper on their face, the burden is on the objecting party to show them unnecessary or unreasonable. (*Nelson, supra*, 72 Cal.App.4th at 131.)

Plaintiffs seek \$2,468.29 in costs. GM challenges several categories and requests that the Court award only \$551.20 in costs.

a. Filing and Motion Fees: \$690.00

Plaintiffs seek \$690.00 in filing fees: Complaint (\$450.00), Motion for Attorneys' Fees and Costs (\$60.00), Motion to Compel Further Responses to Requests for Production (\$60.00), Motion to Compel Further Responses to Form Interrogatories (\$60.00), and Motion to Compel Further Responses to Special Interrogatories (\$60.00). GM argues that Plaintiffs should not recover \$180.00 for the three motions to compel and the fee motion because the discovery motions were unnecessary and the fee motion was necessitated by Plaintiffs' filing rather than GM's conduct.

However, filing fees for the Complaint and the fee motion are recoverable; the fee motion was necessitated by the parties' agreement that fees would be determined by noticed motion, and GM's refusal to meet and confer informally. Filing fees for the motions to compel are also recoverable; the Court granted these motions in part, indicating they had merit. Thus, no reduction is warranted. The Court awards \$690.00.

b. Jury Fees: \$150.00

Plaintiffs seek \$150.00 in jury fees posted on December 23, 2024. GM argues this cost should be stricken because the case never went to trial. To ensure a jury trial, a party seeking a jury trial must pay a nonrefundable \$150.00 fee to offset the costs of the state in providing a jury trial. (CCP § 631(b).) A court may award jury fees to a prevailing party in a case that does not go to trial because paying the nonrefundable jury fee is required to preserve a party's right to trial by jury. (*Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 576.) Thus, the Court awards \$150.00.

c. Service of Process: \$703.43

Plaintiffs seek \$703.43 for service of process, consisting of: service on GM of the Complaint (\$41.20), service on GM of the FAC (\$41.20), and service of deposition subpoenas on Moss Bros GMC's PMK, custodian of records, and service advisors/technicians (\$621.03). GM challenges: (a) the \$41.20 for service of the FAC as duplicative and connected to the non-fee-bearing fraud/CLRA claims; and (b) the \$621.03 in third-party subpoena service costs as unnecessary and unrecoverable under CCP § 1033.5(b)(2), because the depositions were never taken.

Service of process costs are expressly allowable under CCP § 1033.5(a)(4). Service of the FAC was not duplicative; it was a separate, procedurally required act of service, and the FAC added a Song-Beverly claim (Civil Code § 1793.2(b)) in addition to preserving the prior claims. The service therefore benefited the fee-bearing statutory claim as well.

As for the third-party subpoenas, Plaintiffs served deposition subpoenas on Moss Bros GMC—the authorized dealer that performed the warranty repairs on the Vehicle. Percipient-witness discovery from the repairing dealer is not a non-recoverable "investigation expense" within the meaning of section 1033.5(b)(2), and the fact that the depositions were never taken (because the case settled following GM's 998 offer) does

not, by itself, render the service costs unreasonable. Plaintiffs also attached the underlying invoices to the Barry Declaration in reply, itemizing each service charge. (Barry Suppl. Decl. ¶ 4, Ex. 2.) Thus, no reduction is warranted. The Court awards \$703.43.

d. Court Reporter Fees: \$550.00

Plaintiffs seek \$550.00 in court reporter fees for the hearing on this fee motion. GM argues this is an estimate for future services not yet incurred. Costs are recoverable under Civ. Code § 1794(d) only if “reasonably **incurred** by the buyer in connection with the commencement and prosecution of [the] action.” (Civ. Code § 1794(d) [emphasis added].) A cost that has not yet been sustained has not been “incurred” within the meaning of the statute. (Civ. Code § 1794(d).) This is reinforced by CCP § 1033.5(c)(2), which requires that allowable costs be “reasonably necessary to the conduct of the litigation,” and by the verified memorandum of costs itself, which must state that items were “necessarily **incurred**.” (CRC Rule 3.1700(a)(1) [emphasis added].) Because Plaintiffs have not yet incurred this expense, the Court reduces costs by \$550.00.

e. Electronic Filing Fees: \$240.58

Plaintiffs seek \$240.58 for electronic filing or service fees. GM argues Plaintiffs provided no explanation for these alleged costs and the entry should be stricken. Fees for electronic filing or service of documents through an electronic filing service provider are expressly allowable under CCP § 1033.5(a)(14) where the court requires electronic filing. Riverside County Superior Court Local Rule 3118 requires that in all limited and unlimited civil actions, parties represented by counsel must file documents electronically, and mandates that electronic filing be submitted using electronic filing service providers. Plaintiffs’ counsel therefore had no option but to incur electronic filing service provider fees to prosecute this action. Although GM contends the entry is inadequately itemized, the verified Memorandum of Costs is prima facie evidence of propriety, and GM has offered no specific challenge to any particular filing charge. Moreover, in the reply, Plaintiffs attached invoices from their electronic filing service provider itemizing the charges. (Barry Suppl. Decl. ¶ 4, Ex. 2.) The Court awards \$240.58.

f. Other (Mileage and Certified Mail): \$134.28

Plaintiffs seek \$134.28 for: (a) certified mail receipt for CLRA letter (\$9.68); and (b) mileage to and from Victorville for Plaintiffs’ depositions (\$124.60 total). GM argues these are overhead costs and inherent costs of doing business. The certified mail cost for the CLRA letter relates to a claim on which Plaintiffs did not prevail and is not recoverable. However, mileage to attend client depositions is a reasonable litigation expense. The Court reduces the CLRA certified mail cost (\$9.68) but awards the mileage (\$124.60).

Category	Requested	Awarded
Filing and Motion Fees	\$690.00	\$690.00
Jury Fees	\$150.00	\$150.00
Service of Process	\$703.43	\$703.43
Court Reporter Fees	\$550.00	\$0.00
Electronic Filing Fees	\$240.58	\$240.58
Other (Mileage/Certified Mail)	\$134.28	\$124.60
Total	\$2,468.29	\$1,908.61

Based on the above, the Court reduces the requested costs by \$559.68 and award litigation costs in the amount of **\$1,908.61** (\$2,468.29 – \$559.68).

Accordingly, the Court awards Plaintiffs **\$25,019.50** in attorney's fees and **\$1,908.61** in costs, for a combined award of **\$26,928.11**.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2602032	LOYA vs GENERAL MOTORS, LLC.	DEMURRER ON COMPLAINT

Tentative Ruling:

Moving party: Defendant General Motors, LLC ("Defendant" or "GM")
Responding party: Plaintiffs Blanca Loya and Erif Loya ("Plaintiffs")

This is a lemon law case. On April 3, 2026, a Complaint for Statutory Violations was filed alleging: (1) Violation of CC § 17;93.2(d); (2) Violation of CC § 1793.2 (b); (3) Violation of CC § 1793.2 (a)(3); (4) Breach of the Implied Warranty of Merchantability (CC § 1791.1; 1794; 1795.5) and (5) Fraudulent Inducement.

Defendant GM now demurs to the 4th and 5th causes of action. As to the 4th cause of action, Defendant contends that the cause of action is barred by the applicable statute of limitations. As to the 5th cause of action, Defendant contends that (1) the cause of action is barred by the applicable statute of limitations; (2) the Complaint fails to state facts sufficient to constitute a cause of action and (3) the cause of action is barred by the economic loss rules and independent tort principle as Plaintiff cannot establish the elements of their fraudulent concealment claim independently of the parties' contractual rights and obligations.

In Opposition, Plaintiff contends that: (1) the Complaint does not affirmatively show a statute of limitations defense as to the 4th cause of action; (2) the 5th cause of action alleges all of the essential elements; a transactional relationship does not require private in the sale for the manufacture to have a duty to disclose; the cause of action is allowed under California law and is not blocked by the economic loss rule.

In Reply, Defendant GM contends that (1) the implied warranty claims accrue on delivery of the vehicle; (2) Plaintiff cannot invoke delayed discovery regarding the fraud claim when the alleged defect manifested during the applicable express warranty period; (3) direct dealings are required in order to allege the requisite transactional relationship triggering a duty to disclose; (4) even if the Court applies *Dhital*, Plaintiff does not plead or alleged the dealership was an agent of GM, thus the fraud cause of action remains insufficiently pled; (5) as pled, the claims are barred by the economic loss rule.

Analysis

I. Meet and Confer

Defendant GM has met its statutory obligation to meet and confer pursuant to CCP § 430.41. (Declaration of Sarah Pererz, ¶12.)

II. Standard

Demurrer.

The function of a demurrer is to test the legal sufficiency of a pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

Statute of Limitations.

“A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (*Comm. for Green Foothills v. Santa Clara Cnty. Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.) A demurrer is not sustainable if there is only a possibility that the cause of action is time-barred; the statute of limitations defense must be clearly and affirmatively apparent from the allegations in the pleading. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315-16; *Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

III. Merits

A. 4th cause of action for Breach of the Implied Warranty of Merchantability

1. Statute of Limitations

Under section 1792, “every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer’s and the retail seller’s implied

warranty that the goods are merchantable.” (Civ. Code §1791.1(b); (*Brand v. Hyundai Motor America* (2014) 226 Cal.App.4th 1538, 1545.) “Merchantability, as pertinent here, means that the goods ‘[p]ass

without objection in the trade under the contract description,’ and are ‘fit for ordinary purposes for which such goods are used.’ ‘When there has been a breach of the implied warranty of merchantability, a buyer “may bring an action for the recovery of damages and other legal and equitable relief.”’ (Ibid.) “Since cars are designed to provide transportation, the implied warranty of merchantability is simply a guarantee that they will operate in a ‘safe condition’ and ‘substantially free of defects.’ Thus, ‘where a car can provide safe, reliable transportation, it is generally considered merchantable.’” (*American Suzuki Motor Corp. v. Superior Court* (1995) 37 Cal.App.4th 1291, 1297.)

Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods.’” (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 134.) Thus, breach of implied warranty is four years from date of delivery.

Plaintiff’s reliance on *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 for the proposition it “expressly states that the discovery rule applies to implied warranty claims” is patently false. *Mexia* clearly states: “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery. (Id. at p. 1305, emphasis added.) *Mexia*’s plaintiffs brought their claim for breach of implied warranty three years and seven months after delivery of the defective good, and all the parties on appeal conceded that the claim was brought within the applicable four-year statute of limitations, therefore there was no basis to find (nor did the court find) that the delayed discovery rule applied to the statute of limitations for implied warranty claims. (Id. at p. 1301.)

Here, Plaintiff’s fourth cause of action is time-barred. Plaintiff purchased the vehicle on July 7, 2021. Because a breach of implied warranty cause of action accrues when the sale is made (*Cardinal Health, supra*, 169 Cal.App.4th at 134), Plaintiff’s breach of implied warranty cause of action accrued on that date and expired four year later, on July 7, 2025. Plaintiff did not file this action until April 3, 2026, almost 9 months after the four-year limitations period.

Sustain without leave to amend.

B. 5th cause of action for Fraudulent Inducement

1. Statute of Limitations

The three-year statute of limitations for fraud (CCP § 338(d) applies to the 5th cause of action for fraudulent inducement-concealment. Here, Plaintiff purchased the vehicle on July 7, 2021. (Complaint, ¶16.) To assert a fraud claim based upon an alleged fraudulent inducement-concealment claim, Plaintiff had to file a claim no later than July

6, 2024. Here, Plaintiff did not file the Complaint until April 3, 2026 – after the three year statute of limitations ran.

Plaintiff alleges that “the running of the limitation periods have been tolled by, inter alia, the following doctrines or rules: equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling.” (Complaint, ¶ 24.)

The delayed discovery rule tolls the applicable statute of limitations only if Plaintiff is unable to discover their cause of action with reasonable diligence, and to rely upon it, Plaintiff must plead “facts showing that [Plaintiff was] not negligent in failing to make the discovery sooner and that [Plaintiff] had no actual or presumptive knowledge of facts sufficient to put them on inquiry.” (*Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 437; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137.) Conclusory allegations will not withstand a demurrer. (*Fox v. Ethicon Endo–Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Here, Plaintiff concedes that the alleged “[d]efects and nonconformities to warranty manifested themselves” during the “express warranty period.” (Complaint, ¶11.) At the same time, Plaintiff also alleges that they “discovered Defendant’s wrongful conduct alleged herein on or about January 24, 2026” (Complaint, ¶ 25.) These two statements contradict each other and cannot both be true; Plaintiff cannot sustain the burden of demonstrating that Plaintiff did not discover with reasonable diligence the actions giving rise to their claim within the applicable limitations period.

Plaintiff fails to allege any case-specific facts that establishes tolling, and cannot invoke delayed discovery because Plaintiff affirmatively pleads earlier in the Complaint that the alleged “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period[.]” (Complaint, ¶ 11.)

The delayed discovery rule tolls the applicable statute of limitations only if Plaintiff is unable to discover their cause of action with reasonable diligence, and to rely upon it, Plaintiff must plead “facts showing that [Plaintiff was] not negligent in failing to make the discovery sooner and that [Plaintiff] had no actual or presumptive knowledge of facts sufficient to put them on inquiry.” (*Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 437; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137.) Further, in order for the statute of limitations to be tolled for delayed discovery in a fraudulent concealment action, the “complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it. . .” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 900.)

Again, the Complaint merely alleges, “Plaintiff discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them.” (Complaint, ¶ 25.) Plaintiff’s allegations regarding the timing of discovery are insufficient to toll the statute of limitations on a fraudulent concealment claim as they do not contain any time-related allegations. Plaintiff fails to allege the date of the discovery by date, month, or even year. Plaintiff also fails to state how they became aware of the alleged fraudulent concealment. GM is entitled to know the time and manner of delayed discovery at the pleading stage: the “rationale for the rule requiring specificity is that

allegations of fraud are serious, and the defendant is entitled to receive sufficient details in order to prepare his defense.” (*Community Cause, supra*, 124 Cal.App.3d at p. 901.)

Sustain with leave to amend.

2. Failure to State Facts

A. Specificity

Concealment requires: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.) As concealment is a species of fraud, it must also be pled with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.) Less specificity is required where the defendant necessarily possesses the information. (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216.)

Furthermore, as noted by one court, it is not practical to allege facts showing how, when and by what means something did not happen. (*Alfaro v. Community Housing Improvement System Planning Assn.* (2009) 171 Cal.App.4th 1356, 1384.) However, if the concealment is based on providing false or incomplete statements, the pleading must at least set forth the substance of the statements at issue. (*Ibid.*)

The case of *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 addressed the sufficiency for concealment for pleading purposes in fraud in a lemon law case. The *Dhital* court found that it was sufficient that plaintiffs alleged a transmission defect in numerous vehicles, including the plaintiff’s, the defendant knew of the defect and the hazards they posed, defendant had exclusive knowledge of the defect and failed to disclose that information, defendant intended to deceive plaintiffs by concealing known defects, the plaintiffs would not have purchased the car if they had known of the defects, and they suffered damages on the sums paid to purchase the vehicle. (*Id.* at 843-844.)

Here, Plaintiff alleges facts seemingly consistent with *Dhital* (but see discussion of duty, below, where there is an issue). Plaintiff alleged she entered into a warranty relationship with GM around July 7, 2021. (Complaint, ¶6.) Plaintiff identified the material facts GM knew prior to his acquisition of the subject vehicle that GM withheld from Plaintiff; Plaintiff alleged that Defendant had superior knowledge of the facts; the safety risks posed by the Transmission Defect; the materiality of that information; the Plaintiffs would not have purchased the car if they had known of the defects, Plaintiff’s reliance on the non-disclosure; and damages. (Complaint, ¶¶ 46-62.)

B. Duty

As explained in *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311: “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’ ” The last three require evidence of some transaction, i.e. direct dealings between the plaintiff and the defendant. (Id. at 311-312.) The plaintiff had sued her doctor, the manufacturer and a supplier regarding the malfunction of a medical device (providing cold therapy). (Id. at 286.) The plaintiff had rented the device from a supplier. (Id. at 287.) The court found that there was no duty to disclose because there was no relationship between the plaintiff and the manufacturer, no evidence that the manufacturer knew that the plaintiff even had the device (since she obtained it from a supplier), and that there was no evidence that the manufacturer advertised to the public. (Id. at 314.)

Where, as here, a fiduciary relationship does not exist between the parties, only the latter three circumstances may apply. These three circumstances, however, “presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise.” (*Bigler-Engler v. Breg, Inc.*, *supra*, 7 Cal.App.5th at 311 at pp. 336–337.) “A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as ‘seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.’ ” (*Shin v. Kong* (2000) 80 Cal.App.4th 498, 509.)

A duty to disclose may arise as a result of a transaction between the parties. However, the transaction “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Bigler-Engler* at 312 [manufacturing defendant sold medical devices to the doctor defendant several years before the plaintiff rented one of the manufacture's devices from the doctor's office; manufacturing defendant had no contact with the plaintiff, did not know plaintiff was a potential user of their products or used the device, and did not derive any direct monetary benefit from the plaintiff's rental of the device].

This element is where the allegation of the present Complaint deviates from *Dhital*. While *Dhital* has general similarities to the factual allegations and causes of action in the instant matter, *Dhital* contains a crucial distinction: its plaintiffs specifically pled the dealership was Nissan's agent for purposes of the sale to Nissan consumers, alleging specifically that Plaintiffs “bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers.” (Id. at p. 844.) The *Dhital* Court was not paraphrasing or summarizing the language of the pleadings, the allegation of agency is a direct quotation from the operative Complaint. (Id.)

Here, Plaintiff pleads no such allegation in any portion of the Complaint. The Complaint alleges that “Plaintiff entered into a warranty contract with Defendant GM

regarding a 2021 Chevrolet Silverado 1500 [.]” (Compl., ¶ 6.) But the Complaint fails to allege the terms of the transaction, or any interactions Plaintiff had when acquiring the Subject Vehicle. *There is no allegation that the selling dealership, or any dealership acted as an agent on behalf of GM for purposes of the sale or lease of this Plaintiff’s vehicle, unlike the allegations in Dhital.* Plaintiff’s pleadings lead to the reasonable inference that the only dealings established in the Complaint were between GM and the public at large, which is clearly insufficient. Thus, even if this Court considers Plaintiff’s argument and reliance on Dhital, when compared to the specific allegations made in this case it is clear they are not similar.

3. Economic Loss Rule

Defendant argues that Plaintiff’s claim is barred by the economic loss rule because Plaintiff has not sufficiently pled a fraudulent inducement claim. (See above.) Had the claim been sufficiently alleged, then the claim would not be barred under the economic loss rule, as follows:

In *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21 the California Supreme Court explained:

“[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred [citations] unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant’s conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.”

The Court further stated:

“The guiding and distinguishing principle is this. If the alleged breach is based on a failure to perform as the contract provides, and the parties reasonably anticipated and allocated the risks associated with the breach, the cause of action will generally sound only in contract because a breach deprives an injured party of a benefit it bargained for. However, if the contract reveals the consequences were not reasonably contemplated when the contract was entered and the duty to avoid causing such a harm has an independent statutory or public policy basis, exclusive of the contract, tort liability may lie.”
(Id. at 27.)

The Court repeated the public policy reason stated in *Robinson* supports holding fraud a deviation from usual business practice, and a plaintiff advances the public interest in punishing intentional misrepresentations. (Id. at 30-34.) Therefore, a plaintiff may recover out-of-pocket damages in addition to benefit-of-the bargain damages. (Id. at 33-34.) *Robinson* clarified that fraud was not an exception to the economic loss rule, but rather, the doctrine did not apply at all. (Id.)

The Court reiterated that “Broader tort liability only arises if a defendant violates an independent legal duty and the type of harm that ensues was not reasonably contemplated or accounted for by the contractual parties.” (Id. at 37.)

Ultimately, the Court found that a plaintiff can assert an independent claim of fraudulent concealment in the performance of the contract. (Id. at 38.) However, the Court noted that Rattagan’s claims were based on fraud committed during the contractual relationship but allegedly outside the parties’ contractual rights and obligations. (Id. at 41, n. 12.) The Court stated as it had granted review of *Dhital* regarding fraudulent inducement by concealment claims under Song-Beverly, and declined to address the issues in *Rattagan*. (Ibid.) In *Dhital, supra*, 84 Cal.App.5th at 839, the court expressly found that the economic loss rule did not apply to the fraudulent inducement by concealment claim for purposes of pleading. Here, this court will continue to follow *Dhital*.

Sustain.

Summary:

Sustain demurrer to 4th cause of action without leave to amend. Sustain demurrer to 5th cause of action with 21 days leave to amend.